E3 Cross-border transfers and works councils

Restricted transfers and the three-step test, choosing a transfer mechanism with a risk assessment, and consulting works councils before people analytics or AI.

E3-L1 Restricted transfers, when people data leaves the UK

Run the three-step test on every flow, access included. Record each answer, then pick a route: adequacy, safeguards or a narrow exception.

The ICO's three-step test	UK GDPR applies, you initiate a transfer outside the UK, and the receiver is a separate legal person. Three yeses make it restricted.
Access or copies?	Making data available abroad initiates a transfer. No copy is needed.
Three routes for a restricted transfer	Adequacy regulations, appropriate safeguards such as the IDTA, or a narrow exception.
EU adequacy for the UK	Renewed to 27 December 2031. It covers data coming into the UK, not data you send out.

E3-L2 Choosing a transfer mechanism and the transfer risk assessment

Adequacy first, then a safeguard with a TRA that passes, then a narrow exception. Keep "not assessed" apart from "failed".

Order of routes	Adequacy first, then a safeguard with a transfer risk assessment, then a narrow exception.
Common safeguards for talent data	The IDTA, the UK Addendum to the EU standard contractual clauses, and binding corporate rules.
The data protection test	With a safeguard, the exporter judges, reasonably and proportionately, that protection is not materially lower than in the UK.
Missing or failed?	A missing assessment is work not done. Keep `None` apart from `False` in code.

E3-L3 Works councils and consultation before people analytics or AI

Consultation turns on what the tool does and where the people are. Keep the rules as data the lawyers own, and fail loudly on a country nobody has assessed.

UK consultation sources	ICO monitoring workers guidance, Article 35(9) views in a DPIA, and any union or ICE agreement.
Works council rights over monitoring tools	Germany: co-determination. France: CSE consultation before new technology. Netherlands: consent right.
EU AI Act and employers	Inform workers' representatives before using a high-risk AI system. Those obligations now apply from 2 December 2027.
What decides a consultation duty?	What the tool does, and where the affected people work. Keep the rules as data the lawyers own.